

Question 1 - What is the Personal Information Protection and Electronic Documents Act (PIPEDA)?

PIPEDA is a Canadian federal law that tells businesses in the private sector how to handle personal information when they are doing business. It was first proposed in 2000 and got royal approval on April 13, 2000. By January 2004, it was fully in place in stages. The goal is to build trust in both electronic and regular business by ensuring that personal information is handled responsibly and openly.

Why does it exist?

PIPEDA protects Canadians' private information, like names, contact information, identifiers, and other private information, from being used in ways that are unfair or not allowed. At the same time, it lets businesses keep working and coming up with new ideas. It was also made to make sure that Canada's privacy laws are in line with international standards. This way, personal information can be shared with the European Union, for example, while still meeting that jurisdiction's adequacy requirements.

Whom does it intend to protect?

PIPEDA mostly protects people (customers, clients, and users) whose personal information is collected, used, or shared during business activities. In some federally regulated industries, such as banks and airlines, it also covers employee information, regardless of the province in which they are located. But most of the time, PIPEDA is more concerned with protecting people's privacy rights in the private sector.

Where and to whom does it apply?

PIPEDA applies to businesses all over Canada that collect, use, or share personal information as part of their business activities. This includes services and business functions. It also applies to federally regulated businesses, works, and undertakings, like transportation and telecommunications. If a province has its own privacy law that is "substantially similar" (such as Quebec, Alberta, or British Columbia), that law applies in that province rather than PIPEDA. However, PIPEDA still applies to businesses that operate in more than one province or that send data across borders.

What does PIPEDA state (in summary)?

At its core, PIPEDA requires organizations to:

- Obtain consent when they collect, use, or share personal information.
- Collect only information that is necessary and do so fairly and lawfully.
- Maintain appropriate safeguards to protect personal data from misuse or unauthorized access.
- Provide individuals with access to their own personal information and a right to correct it.
- Be accountable and transparent about personal information practices.

People can also file a complaint with the Office of the Privacy Commissioner of Canada (OPC) if they think their privacy has been violated. The OPC investigates, writes reports, and makes recommendations. However, the law doesn't automatically impose fines without more laws.

PIPEDA strikes a balance between people's right to privacy and businesses' need for information, which helps build trust in the digital economy.

Citation

Office. (2025). *The Personal Information Protection and Electronic Documents Act (PIPEDA)* -

Office of the Privacy Commissioner of Canada. Priv.gc.ca.

<https://www.priv.gc.ca/en/privacy-topics/privacy-laws-in-canada/the-personal-information-protection-and-electronic-documents-act-pipeda/>

to, C. (2004, November 8). *2000 Canadian law*. Wikipedia.org; Wikimedia Foundation, Inc.

https://en.wikipedia.org/wiki/Personal_Information_Protection_and_Electronic_Documents_Act

Office. (2026, February 23). *Office of the Privacy Commissioner of Canada - Office of the Privacy*

Commissioner of Canada. Priv.gc.ca. <https://www.priv.gc.ca/en/>

Question 2 - Two Case Summaries from “Investigations into Businesses”

Case A: Telecommunications Firm & Voiceprint Authentication (PIPEDA findings #2022-003)

In March 2022, the Office of the Privacy Commissioner investigated a complaint that Rogers, a major phone company, was collecting and using customers' biometric voiceprints (for phone-based voice ID) without first obtaining their permission. The person who filed the complaint said that the company signed up for and kept voiceprints without clear permission or a good way for customers to withdraw their consent. They also said that the company didn't properly delete voiceprints when a customer opted out.

The OPC looked into whether the goal was appropriate and whether real, meaningful consent was given. The investigation found that the idea of using voice authentication to make things safer was mostly good, but the company didn't have enough ways for people to give their permission or train their staff. There were also problems with the paperwork and how the company handled requests to withdraw consent. The OPC found that the consent and retention issues were valid and could be resolved conditionally, provided the company agreed to make changes, such as explicitly obtaining consent, clarifying opt-out procedures, and deleting voiceprints upon request.

What was the outcome?

The telecom company committed to revising its consent practices, updating training, and implementing technical changes. The case highlights that even well-intentioned biometric systems must strictly comply with PIPEDA's consent and retention rules.

Case B: Investigation into Desjardins' Compliance After a Large Data Breach (PIPEDA findings #2020-005)

From 2017 to 2019, Desjardins, one of Canada's largest credit unions, suffered a major data breach that exposed millions of clients' personal information, including names, birth dates, social insurance numbers, addresses, and more. The breach occurred because an employee repeatedly obtained access to and took data over an extended period. The OPC examined whether Desjardins followed PIPEDA's rules on data retention, accountability, and security.

The OPC found that Desjardins did not properly protect personal information, such as by retaining data longer than necessary and failing to implement strict access controls. It also found that staff weren't aware of or trained on certain aspects, allowing the bad insider to access sensitive information without being caught. The breach showed that data security and lifecycle management were insufficient.

What was the outcome?

The report concluded that Desjardins contravened PIPEDA's principles related to accountability, security safeguards, and retention. The OPC issued recommendations for stronger oversight, improved internal controls, and more robust training. The breach (affecting millions) also underscored broader privacy risks when personal information is not safeguarded properly.

Citation

Office. (2022). *PIPEDA Findings #2022-003: Telecommunications firm failed to obtain appropriate consent for voiceprint authentication program - Office of the Privacy Commissioner of Canada*. Priv.gc.ca.

<https://www.priv.gc.ca/en/opc-actions-and-decisions/investigations/investigations-into-businesses/2022/pipeda-2022-003/>

Office. (2020). *PIPEDA Findings #2020-005: Investigation into Desjardins' compliance with PIPEDA following a breach of personal information between 2017 and 2019 - Office of the Privacy Commissioner of Canada*. Priv.gc.ca.

<https://www.priv.gc.ca/en/opc-actions-and-decisions/investigations/investigations-into-businesses/2020/pipeda-2020-005/>

Question 3 - Opinion: Confidence in Canada's Government Protecting Online Privacy

After reviewing PIPEDA and OPC investigations, I am confident that the Canadian government is taking steps to protect online privacy. I recognize that there are limitations that should be improved.

On the positive side, PIPEDA lays out precise legal requirements for how companies must manage personal data, including consent, security measures, accountability, and transparency. There is oversight and actual repercussions for inadequate privacy practices, as evidenced by the Office of the Privacy Commissioner's active investigation of complaints and publication of findings, such as in the voiceprint consent case and the Desjardins data breach case.

It is evident from these cases that when organizations violate privacy standards, the OPC holds them responsible. The Desjardins investigation revealed systemic security flaws and mandated improvements, while the telecom case led to significant changes in the way consent is obtained. Both results demonstrate PIPEDA in action.

PIPEDA does have some restrictions, though. Organizations are not legally required to abide by the Commissioner's recommendations unless further enforcement measures (such as court orders) are sought; the law itself does not automatically impose fines or penalties. The Commissioner's reports are advisory under PIPEDA's legal framework, and more robust enforcement measures could enhance compliance.

In my experience, having control over my data means that when websites or services gather my information, I expect clear consent and transparency, which PIPEDA aims to guarantee. Even though there are still problems, particularly with more recent technologies (such as biometric data and artificial intelligence), PIPEDA offers a fundamental framework that the government upholds through the OPC. I am cautiously optimistic about Canada's approach to online privacy protection, given the continuous updates and potential for increased enforcement powers in future reforms.

Citation

Office. (2022). *PIPEDA Findings #2022-003: Telecommunications firm failed to obtain appropriate consent for voiceprint authentication program - Office of the Privacy Commissioner of Canada*. Priv.gc.ca.

<https://www.priv.gc.ca/en/opc-actions-and-decisions/investigations/investigations-into-businesses/2022/pipeda-2022-003/>

Office. (2020). *PIPEDA Findings #2020-005: Investigation into Desjardins' compliance with PIPEDA following a breach of personal information between 2017 and 2019 - Office of the Privacy Commissioner of Canada*. Priv.gc.ca.

<https://www.priv.gc.ca/en/opc-actions-and-decisions/investigations/investigations-into-businesses/2020/pipeda-2020-005/>

to, C. (2004, November 8). *2000 Canadian law*. Wikipedia.org; Wikimedia Foundation, Inc.

https://en.wikipedia.org/wiki/Personal_Information_Protection_and_Electronic_Documents_Act